
Journal

1996 MLD 1749

Court

SINDH HIGH COURT

Date

1995-11-28

Appeal No.

CONSTITUTIONAL PETITION NO. D-602 OF 1995

Judge

GHULAM HAIDER LAKHO AND DR. GHOUS MUHAMMAD

Parties

DR. RAEES FARHAN MUSHTAQ AND ANOTHER (PETITIONERS) VERSUS MST NAHEED ALIAS MONA AND 3 OTHERS RESPONDENTS

Lawyers

DR. RAEES M. MUSHTAQ FOR PETITIONERS. ' 'NAIMATULLAH SOOMRO FOR RESPONDENTS NOS.1 AND 2.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - SS. 2(B), 3, 5 AND 14 CIVIL PROCEDURE CODE(V OF 1908) - S.24 CRIMINAL PROCEDURE CODE (V OF 1898) - S.528 CONSTITUTION OF PAKISTAN (1973) - ARTICLE 199

Judgment

JUDGMENT * p DR. QHOUS MUHAMMAD, J.-In this Constitutional petition under Article 199 of the Constitution of Islamic Republic, of Pakistan, 1973 the petitioners have prayed as follows:-- That Appeal No.122 of 1995, pending in the Court of IVth Additional District Judge, Hyderabad and App'eal No.36 of 1995, pending in the , ' Court of 1st Additional District Judge, Hyderabad, may be ordered to be tried by any one Court. r' ' m f (B) Since serious allegations of perjury have been made against the respondents and irrefutable documentary and oral evidence have been brought on record, which will fully prove that the respondents have , committed offences of perjury as such this Honourable Court may be pleased to direct that the proceedings under section 476, Cr.P.C'. for which appeal under section 14(1) of Family Courts Act,. 1964, has been filed may proceed first after the .decision of this petition, the Family Civil Appeal No. 122 of 1995, may be heard and decided by the trial Court after final adjudication of Appeal No.36 of 1995." , The admitted facts are that the respondent No.I filed Family Suit No.26 of 1994 for dissolution of marriage which was dismissed on 25-7-1995 by the learned Family Court, Hyderabad. She preferred Family Appeal (No. 122 of 1995) under section 14 of the Family Courts Act, 1964 in the Court of District Judge, Hyderabad which was transferred on the file of learned IVth Additional District and Sessions Judge, Hyderabad and it is still pending, During the pendency of Family Suit No.26 of 1994 the appellant had submitted applications under section 476; Cr.P.C. for proceedings against the respondents as allegedly they had committed perjury while giving evidence in the family suit. These applications were dismissed on 16-8-1995 by the learned'Vth Extra-Joint Civil Judge and F. C. M., Hyderabad and the said dismissal order has been challenged in' Miscellaneous Appeal No.36 of 1995 by the1 petitioner No.2 in the Court of learned District Judge, Hyderabad but this appeal was also transferred on the filr. of learned 1st Additional'District and Sessions Judge,' Hyderabad.

We have heard Dr. Raees M.. Mushtaq learned counsel for the petitioners and Mr. Naimatullah Soomro learned counsel for the respondents Nos. 1 and 2 and perused the record, ' 1 ' Learned counsel for the petitioners submitted that in the interest of justice Miscellaneous Appeal No.36 of 1995 be disposed of before final . adjudication of Family Appeal No. 122 of 1995. Learned counsel for the respondents Nos.I and 2 submitted that instead of seeking remedy in this Constitution petition the petitioners should have moved the learned District Judge for the reliefs prayed for but ultimately conceded to the grant of relief as contained in sub-para. 'A' and also prayed for early disposal of the two appeals.

The essential question that warrants consideration is whether there exists any bar in respect of consolidation of the two appeals stated above. In S. Shahid Ali v. Mst. Mubarak Bano PLD 1976 Kar. 68, a Division Bench of its Court has taken in view that sections 24 (providing for a general power of , transfer and withdrawal of cases) and 151 of the C.P.C. would not be available to order transfer of a family suit from one Court to another. This conclusion has been so arrived in view of section 17 of the Family Courts Act, 1964 which has made the provisions of the C.P.C. inapplicable to family suits except sections 10 and 11. The views expressed in the said judgment no doubt bind us, however, the rule enunciated therein is only extendable to proceedings before the Family Courts and not to Appellate Courts. We are of the view that a Court possessed of an appeal against the decision of the Family Court cannot be termed or treated as a Family Court. We are fortified in arriving at this conclusion in view of the clear terms of .the statute i.e. the Family Courts Act, 1964 which in its section 2(b) defines as "Family Court" to mean a Court constituted under the Act, while section 3 of the said Act provides for establishment of Family Courts at various places. From the words of the statute it becomes crystal clear that while entertaining an appeal under section 14(1 of the Family Courts Act, , 1964, the Courts of the District Judge or Additional District Judge do not act as a Family Court for the very simple reason

that the 1964 Act has not created the latter. It is only the Family Courts which owe their origin and creation to the 1964 Act while the Courts entertaining appeals arising out of the said Act are neither expressly created by that Act nor are they by any fiction of law deemed to be treated as Family Courts. We accordingly hold that the rule enunciated in the case of S. Zahid Ali would be inapplicable to the Courts entertaining appeals arising out of orders passed by the Family Judge. We, therefore, direct the District Judge, Hyderabad to assign the two matters' to any one Court (i.e. Additional District Judge in Hyderabad) or himself, at his convenience, In this regard the District Judge can exercise powers under section 24 of the C.P.C. in respect of Appeal No.

122 of 1995, while in relation to Miscellaneous Appeal No.36 of 1995 recourse can be had to. section 528 of the, Cr.P.C. as Miscellaneous Appeal No.36 of 1995 is a case of criminal nature. It is also pertinent to note that the District Judge is possessed of the power to assign appeals and functions of hearing an appeal to any Additional District Judge as held in Malookan v. Sher Muhammad PLD* 1977 Lah. ,18. Before parting with this issue we may further observe that law favours adjudication of proceedings which arise out of same/similar issues/parties together, so that a Court can view the entire controversy in its correct perspective and without having to look into things independently and in isolation which approach is always proper to result into overlooking of things, matters or evidence resulting in miscarriage of justice. ,

In view of the above discussion this petition is allowed only for prayer "A" with no orders as to costs. Since R & Ps of both the appeals pending in this Court are no more required the office is directed to immediately return the same to the Courts concerned for further proceedings.

I m A.A./R-7/K Order accordingly.

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1175567

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